

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

Case No. 098-012

STEVEN GORDON, Ph.D.

License No. 301-00456

Respondent.

**SETTLEMENT AGREEMENT
AND FINAL ORDER**

COMES NOW the Iowa Board of Psychology Examiners (Board) and Steven Gordon, Ph.D., (Respondent) and pursuant to Iowa Code sections 17A.10(2) and 272C.4) (1999) and enter into the following Settlement Agreement and Final Order in case number 098-012.

1. Respondent was issued license number 301-00619 to practice psychology in Iowa on July 16, 1984, and Respondent's license is current and until June 30, 2000.
2. On or about July 30, 1999, the Board, upon a finding of probable cause, filed a Statement of Charges in this case, alleging that Respondent had engaged in acts violative of the Board's ethical rules and other rules governing the practice of psychology.
3. The Board has jurisdiction over the parties and the subject matter herein.
4. Execution of this Settlement Agreement and Final Order constitutes resolution of this contested case. By executing this Settlement Agreement and Final Order, Respondent expressly waives all rights to a hearing on the charges contained in the Statement of Charges and waives any objection to this Settlement Agreement and Final Order.
5. Respondent is freely and voluntarily entering into this agreement and he agrees that the State's attorney may present the agreement to the Board.
6. This Settlement Agreement and Final Order is subject to approval by a majority of the

full Board. If the Board fails to approve this agreement, it shall have no force or effect to either party.

7. The Board's approval of this Settlement Agreement and Final Order shall constitute the resolution of a contested case proceeding and shall be a FINAL ORDER of the Board.

8. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

9. The terms and conditions imposed by this Settlement Agreement and Final Order shall become effective as of the date approved by the Board and the parties agree that upon the satisfactory completion of all of the terms and conditions imposed herein, the Respondent's license shall be restored to its full privileges.

10. Respondent admits that, had this case proceeded to hearing, the State would have presented evidence to establish that Respondent engaged in acts inconsistent with the Ethical Principles of Psychologists and the Board's administrative rules.

11. Respondent agrees that a dual relationship with a patient, if proven in an evidentiary hearing, violates the Ethical Principles of Psychologists, violates the Board's administrative rules, and constitutes an act harmful and detrimental to the public.

12. This Settlement Agreement and Final Order shall be part of the permanent record of the Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

13. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa

Code Section 272C.3(2)(a).

IT IS HEREBY ORDERED:

Iowa Board of Psychology Examiners license number 301-00456 is suspended indefinitely subject to the following terms and conditions:

1. Respondent's license to practice psychology in the State of Iowa shall be suspended immediately upon the Board's approval of this Settlement Agreement and Final Order and shall remain suspended indefinitely.
2. The Respondent may not seek reinstatement of his license to practice psychology in the State of Iowa until at least one year has elapsed from the date of the Board's approval of this Settlement Agreement and Final Order.
3. For the purpose of reinstatement, the Respondent agrees that any application for reinstatement of Respondent's license to practice psychology in the State of Iowa will be governed by 645 Iowa Administrative Code 11.31. Pursuant to that provision, if the Respondent seeks to reactivate his psychology license, he will bear the burden of proof of establishing that he meets the requirements for reinstatement of his license under 645 Iowa Administrative Code 11.31. In the event the Board sees fit to reactivate the Respondent's license, the Respondent agrees that the Board, in its sole discretion, may place restrictions on his ability to practice psychology. Such restrictions may include, but are not limited to, placing Respondent's license on probation for a period of time.

Steven Gordon
STEVEN GORDON, Ph.D.
Respondent

6/4/00
Date

The statement of charges and informal settlement agreement is approved by the Board on
this 16th day of June, 2000.



Dr. Scott Shafer, Chair
Iowa Board of Psychology Examiners

APPROVED AS TO FORM:



David L. Brown – Attorney for Respondent



Shauna Russell Shields – Attorney for the State

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

)
) Case No. 098-012
)

STEVEN GORDON, Ph.D.

)
) License No. 301-00456
)

)
) **STATEMENT OF CHARGES**
)

Respondent.

TO THE ABOVE-NAMED RESPONDENT:

The Iowa Board of Psychology Examiners has jurisdiction over this matter pursuant to Iowa Code chapters 17A, 154B, and 272C (1995) (1997) (1999).

Licenses issued by the Board are subject to the laws of the State of Iowa and to the administrative rules of the Board.

Respondent Steven Gordon, Ph.D., was at all times during the following events licensed to practice psychology in the State of Iowa. Respondent was issued license number 301-00456 to practice psychology in the State of Iowa on July 16, 1984, as recorded in the permanent records in the office of the Board, and his license is current until June 30, 2000.

Respondent's last known address was 2811 Cutter Grove, Apt. 105, Anoka, Minnesota 55303.

COUNT I

Respondent is charged with violating Iowa Code section 272C.10(3) and 645 Iowa Administrative Code sections 240.212(1)(c), 240.212(7)(f), 240.212(14) and section 1.14 and 4.05 of the *Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (Code of Conduct)*, incorporated by reference in the aforementioned rule, by willfully engaging in unethical conduct or conduct harmful or detrimental to the public, by

engaging in a sexual relationship with a client, and by failing to comply with sections 1.14, 1.17, 4.05, and 408 of the *Code of Conduct* when he engaged in a sexual relationship with a client, Patient #1.

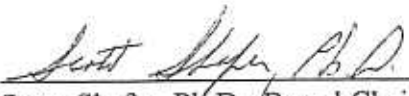
CIRCUMSTANCES

1. Patient #1, an adult resident of Cerro Gordo County, Iowa was treated by the Respondent from approximately September 23, 1993 through at least May 6, 1996.
2. While treating Patient #1 and while engaged in Patient #1's final formal therapy session in his office, Respondent kissed Patient #1 and indicated he intended to call her.
3. Respondent did call Patient #1 and he initiated sexual relations with Patient #1. Respondent's sexual relations with Patient #1 included hugging and kissing, fondling her breasts, oral sex, and sexual intercourse. The sexual relationship between Respondent and Patient #1 lasted for more than one year and occurred within two years after cessation of Respondent's treatment of Patient #1. Many of the sexual encounters between Respondent and Patient #1 occurred in Respondent's offices.
4. Respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action.

FINDINGS OF PROBABLE CAUSE

On July 30, 1999, the Iowa Board of Psychology Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 30 day of July, 1999.



Scott Shafer, Ph.D., Board Chair
Iowa Board of Psychology Examiners

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**STATE OF IOWA
BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS**

IN THE MATTER OF:	)	CASE NO. 98-012
	)	
STEVEN GORDON, Ph.D.	)	NOTICE OF HEARING
License No: 301-00456	)	
	)	
RESPONDENT	)	

YOU ARE HEREBY NOTIFIED that on June 11, 1999, the Iowa Board of Psychology Examiners found probable cause to file a Statement of Charges against you. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 147 and 272C (1999), and 645 Iowa Administrative Code chapter 325. A copy of the Statement of Charges is attached, and sets forth the particular statutes and rules which you are alleged to have violated, and further provides a short and plain statement of the matters asserted.

IT IS HEREBY ORDERED that a disciplinary contested case hearing be held upon the Statement of Charges on December 2, 1999, before the Board. The hearing shall begin at 1:00 p.m., and shall be held in the Lucas State Office Building-5th Floor Board Conference Room, 321 E. 12th Street, Des Moines, Iowa. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on pre-hearing matters, and be present to assist and advise the Board at hearing.

Within 20 days of the date you are served with the Statement of Charges and Notice of Hearing, you are required by 645IAC 11.12 to file an answer to the charges. In that answer, you should also state whether you will require an adjustment of the date and time of the hearing.

At hearing, you may appear personally and be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11.

The office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of all pleadings filed with the Board should be provided to counsel for the State at the following address:

Shauna Shields
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, IA 50319
Phone (515) 281-6858

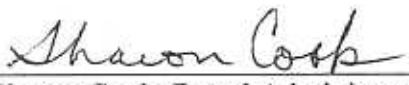
Respondent's counsel is:

David L. Brown
Law Offices
Hansen, McClintock & Riley
Eighth Floor Fleming Building
218 Sixth Avenue
Des Moines, IA 50309-4092
Phone (515) 244-2141

If you fail to appear at hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC chapter 12. If you are interested in pursuing settlement of this matter, please contact Shauna Shields, Assistant Attorney General, at the above telephone number.

Dated this 10th day of August, 1999.



Sharon Cook, Board Administrator
Iowa Board of Psychology Examiners